

**SUBSTITUTE FOR
SENATE BILL NO. 510**

A bill to amend 1931 PA 328, entitled
"The Michigan penal code,"
(MCL 750.1 to 750.568) by adding section 396a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 396a. (1) Except as provided under subsection (2), a**
2 **federal immigration officer, while interacting with a member of the**
3 **public in the performance of the officer's duties, shall wear an**
4 **appropriate uniform and an activated body-worn camera and shall not**
5 **wear a mask or personal disguise.**

6 **(2) A federal immigration officer may wear a mask in any of**
7 **the following circumstances:**

8 **(a) To prevent the federal immigration officer from**
9 **contracting an airborne disease, the federal immigration officer**



1 may wear a mask that is designed to prevent the transmission of
2 airborne disease.

3 (b) To protect the federal immigration officer from airborne
4 toxins during a state of emergency, the federal immigration officer
5 may wear a mask that protects against exposure to the airborne
6 toxins during the state of emergency.

7 (c) The federal immigration officer may wear a mask that is
8 necessary to protect against exposure to a toxin, gas, smoke,
9 inclement weather during a declared weather emergency, or any other
10 hazardous or harmful environmental condition.

11 (3) A federal immigration officer who violates subsection (1)
12 is guilty of a misdemeanor punishable by imprisonment for not more
13 than 90 days or a fine of not more than \$500.00.

14 (4) This section does not apply to a federal immigration
15 officer engaged in an undercover assignment.

16 (5) As used in this section:

17 (a) "Appropriate uniform" means a uniform that displays the
18 federal immigration officer's name or badge number.

19 (b) "Body-worn camera" means a device that is worn by a
20 federal immigration officer that electronically records audio and
21 video of the federal immigration officer's activities.

22 (c) "Federal immigration officer" means an officer, employee,
23 or individual paid by or acting as an agent of the United States
24 Immigration and Customs Enforcement or United States Customs and
25 Border Protection, or any division thereof, or any other officer,
26 employee, or individual paid by or acting as an agent of the United
27 States Department of Homeland Security who is charged with
28 immigration enforcement.

29 (d) "Mask" includes, but is not limited to, a piece of



1 nontransparent material meant to cover the face or conceal an
2 individual's identity that would otherwise be readily apparent.
3 Mask does not include a face shield that does not conceal the
4 wearer's face.

5 (e) "Undercover assignment" means any investigative activity
6 that involves the use of an assumed name or cover identity by a
7 federal immigration officer.

8 Enacting section 1. This amendatory act takes effect 90 days
9 after the date it is enacted into law.